



DOT ONE LLC

CLIENT SERVICES AGREEMENT

Wasilla, Alaska

PHOTOGRAPHY & VIDEO SERVICES

Client Services Agreement

Booking terms, payment, cancellation, and policies for photography and video services by Dot One Media. Please read before booking. This protects both you and us and keeps expectations clear.

In plain terms: This agreement covers the business side of your project, what you are booking, how payment works, what happens if a session is canceled or needs to move, and how images are delivered and used. It is designed to be fair to both sides. Please read it, ask any questions, and keep a copy. A signed copy is available to you on request.

1 Parties & Project

This Client Services Agreement (this "Agreement") is between **Dot One LLC**, an Alaska limited liability company doing business as Dot One Media ("Dot One Media," "we," or "us"), and the client named below ("you" or "Client"). It governs the photography and/or video services you book with us (the "Services"). The specific session type, date, location, deliverables, and price are as described in your booking confirmation, which is incorporated into this Agreement.

2 Booking, Retainer & Payment

2.1 Retainer to Reserve. A non-refundable retainer of **\$750** is due at the time of booking to reserve your date. **The retainer is earned when paid.** It compensates us for reserving your date, declining other work for that date, and beginning preparation. It is not a deposit toward future work and is not refundable if you cancel.

2.2 Balance Due. The remaining balance is due no later than **twenty-four (24) hours before the scheduled filming date. If the balance is not paid in full by that time, the session will not proceed and will be treated as a cancellation by you under Section 3.1.** We do not begin filming, and Content is not delivered, until the balance is paid in full.

2.3 Late Payment. If we agree, at our sole discretion, to proceed with a session or delivery despite an unpaid or partial balance, the outstanding balance will incur a late fee of **\$100 per day, for up to seven (7) days after the scheduled filming date.** Delivery of your Content may be paused until the balance and any late fees are resolved. You are responsible for reasonable costs of collection, including court costs, if payment is not made.

2.4 Accepted Payment. Payment is accepted through the methods stated at booking. Returned or failed payments may incur a fee.

3 Cancellation & Refunds

3.1 Cancellation by Client. The \$750 retainer is non-refundable in all cases, because we reserve your date and decline other work for it. **If you cancel with at least three (3) days' notice before the scheduled filming date, you owe nothing beyond the retainer, which is retained. If you cancel fewer than three (3) days before the scheduled filming date,** any additional payments made beyond the retainer are also non-refundable, because the reserved time can no longer be rebooked.

3.2 Cancellation by Dot One Media. If we must cancel and cannot reschedule to a mutually acceptable date, and the cancellation is not due to your conduct or a Force Majeure event, we will refund amounts you have paid, including the retainer. This is the limit of our responsibility for a cancellation.

3.3 No-Show. If you do not appear for a scheduled session without notice, the session is treated as a late cancellation and all payments are forfeited.

4 Rescheduling

4.1 By Client. You may reschedule with at least **three (3) days' notice** before the scheduled filming date, subject to our availability, for a rescheduling fee of **\$150**. Your retainer transfers to the new date. Reschedules requested with fewer than three (3) days' notice are treated as a cancellation under Section 3.1.

4.2 Weather & Conditions (Alaska). Because outdoor sessions in Alaska depend on weather, daylight, and road and travel conditions, we may, using our professional judgment, reschedule an outdoor session for weather or unsafe conditions. **Rescheduling for weather is not a cancellation and does not entitle either party to a refund;** the retainer and payments transfer to the rescheduled date. We will work with you to find a workable new date.

5 Travel & Location

5.1 Travel. Travel within **fifty (50) miles of the Mat-Su Valley** is included. Travel beyond that distance requires the corresponding travel add-on, selected before or after booking, which covers the additional mileage and time. Extended or overnight travel may also incur lodging and per-diem charges, disclosed in advance.

5.2 Permits & Access. You are responsible for securing any permits, permissions, or access fees required for your chosen location, including state or national parks, private property, and venues. If a location becomes unavailable or a permit is not obtained, we will work with you to find an alternative, but we are not responsible for a location we cannot lawfully access.

5.3 Safe Working Conditions. You agree to provide a safe environment for the session. We reserve the right to end a session if conditions become unsafe or if any person is abusive or

threatening, without refund.

6 Creative Control & Deliverables

6.1 Artistic Style. You are booking us for our particular style, which you have had the opportunity to review in our portfolio. We bring our creative judgment to editing, selection, color, and presentation. **You agree that dissatisfaction with our artistic style is not grounds for a refund,** though we always aim for your satisfaction within our style.

6.2 Deliverables & Timeline. The number of images or video length, the format, and the delivery timeline are as stated in your booking. Typical delivery is within the timeframe listed for your session type. Rush delivery is available as an add-on.

6.3 Revisions. Your booking includes the number of revision rounds stated for your session type. Additional revisions are available for a fee. This keeps projects moving and scope clear.

6.4 Selection & Editing. We select and deliver the images and footage we consider the strongest representation of the work. We are not obligated to deliver every frame captured, outtakes, or unedited files unless raw-footage delivery is purchased as an add-on.

7 Copyright, Usage & Model Release

7.1 Ownership. Dot One Media retains copyright and ownership of all Content created. You receive a personal-use license to the delivered Content unless a broader license is stated in your booking.

7.2 Client Use. Unless otherwise agreed in writing, delivered Content is licensed to you for personal, non-commercial use. Commercial use by you (for advertising, resale, or business promotion) requires a commercial license, which we are glad to arrange.

7.3 Our Use & Model Release. Our use of your images and video, including for our portfolio and marketing, is governed by the separate **Photography & Video Release and Liability Waiver**, which you will also sign. Please refer to that document and your usage selection within it.

7.4 No Alteration by Client. You agree not to edit, alter, add filters to, or crop delivered Content in a way that materially changes our work, and not to claim authorship of it.

8 Limitation of Liability & Failure to Perform

8.1 Limitation of Liability. To the fullest extent permitted by law, our total liability arising out of or related to the Services or this Agreement, for any reason, **shall not exceed the total amount you paid to us for the applicable project.** We are not liable for indirect, incidental, or consequential damages, including lost opportunities.

8.2 Equipment or Unforeseen Failure. In the unlikely event that Content is lost or a session cannot be completed due to equipment failure, illness, injury, or other cause beyond our

reasonable control, our liability is limited to a refund of amounts paid for the affected Services, or a reshoot at our option. This is a standard and important protection for both sides.

8.3 Force Majeure. Neither party is liable for failure to perform due to events beyond reasonable control that are both unforeseeable and unavoidable, such as natural disasters, wildfire, earthquake, war, or government order. *(Ordinary weather is addressed separately in Section 4.2.)*

9 General Terms

9.1 Governing Law & Venue. This Agreement is governed by the laws of the **State of Alaska**. Any dispute shall be brought in the state or federal courts located in Alaska. *(Alaska small claims court handles disputes up to \$10,000.)*

9.2 Entire Agreement & Changes. This Agreement, together with your booking confirmation and the Release, is the entire agreement between us. Any changes must be in writing and agreed by both parties.

9.3 Severability. If any provision is held unenforceable, the rest remains in effect, and that provision is enforced to the maximum extent permitted.

9.4 Acknowledgment. You confirm you have read this Agreement, understand it, have had the opportunity to ask questions, and agree to it voluntarily.

10 Agreement & Signature

CLIENT FULL NAME (PLEASE PRINT)

SESSION TYPE & DATE

CLIENT SIGNATURE

DATE SIGNED

EMAIL

PHONE

DOT ONE MEDIA · AUTHORIZED SIGNATURE

DATE SIGNED

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